



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9939

JUL 6 1988

1. National Aeronautics and Space Administration (NASA), Washington, D.C., is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a rocket motor for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a rocket motor in packaging not authorized in 49 CFR 173.92, and authorizes a gross weight in excess of 550 pounds by cargo-only aircraft, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from NASA dated February 22, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Rocket motor, Class B explosive.

4. PROPER SHIPPING NAME (49 CFR 172.101). Rocket motor.

5. REGULATION AFFECTED. 49 CFR 172.101 table, column (6)(b), 173.92.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, cargo-only aircraft.

7. SAFETY CONTROL MEASURES. Packaging prescribed is inner packaging constructed of aluminum shown on drawings 51240-1-001 and G070-570303 dated November 12, 1987, and November 23, 1987, respectively. Wooden box outer packaging shown on drawing MK-392-80547 dated January 5, 1987.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each aircraft, motor vehicle used to transport packages covered by this exemption.

c. Rocket motors approved under File Number EX-8801029 packaged as authorized in this exemption are excepted from the 550 pound limitation in 49 CFR 172.101, column (6)(b), and may have a gross weight not to exceed 1700 pounds.

d. Shipments by air must comply with the following:

1. The requirements of 49CFR 175.320 (b) apply.

2. The air carrier must be identified to and acknowledged in writing by this office prior to each shipment.

3. This exemption does not grant authority to use foreign controlled airspace or airports outside the United States.

4. No other cargo is permitted aboard the aircraft unless specifically identified to and acknowledged in writing by this office.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. June 30, 1990.

Issued at Washington, D.C.

Alan I. Roberts

Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

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(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemption Branch.

Dist: FAA, FHWA